

In the second affirmative defense, CSAAVE alleges that the petition is barred by laches. The affirmative defense of laches requires pleading facts that give rise to that defense, or relying facts on the face of the petition. (*Hollenbeck Lodge (486) I.O.O.F. v. Wilshire Boulevard Temple* (1959) 175 Cal.App.2d 469, 475.) Here, CSAAVE clarified that this defense is based upon Petitioner's failure to act between August 26, 2025, and November 20, 2025. The petition was filed on November 20 and it alleges that CSAAVE denied Petitioner's application on August 26. (Pet. ¶1 and date petition was filed.) Thus, the defense of laches is sufficiently alleged. Therefore, the motion to strike the second affirmative defense is denied.

In the third affirmative defense, CSAAVE alleges that the petition is barred by waiver and/or estoppel. In the opposition, CSAAVE argues that some of facts in the petition support waiver, but they did not include those facts here. Therefore, the Court grants the motion to strike the third affirmative defense with leave to amend.

In the fourth affirmative defense, CSAAVE alleges that the petition is barred by the doctrine of unclean hands as Petitioner makes false statements in her petition. The Court finds that CSAAVE has included facts to support this affirmative defense. Therefore, the motion to strike the fourth affirmative defense is denied.

Discovery Law & Motion

21. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.

22. 9:01 AM CASE NUMBER: C25-01233
CASE NAME: SAYED MASSOUD VS. TOYOTA MOTOR SALES, U.S.A., INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL**
INTERROGATORIES BY DEF TOYOTA MOTOR SALES, U.S.A., INC.
FILED BY: MASSOUD, SAYED
TENTATIVE RULING:

Withdrawn by Notice of Withdrawal filed May 5, 2026. The matter is DROPPED from calendar.